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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2234/67 - 2021 ජූලි මස 02 වැනි සිකුරාදා - 2021.07.02

No. 2234/67 - FRIDAY, JULY 02, 2021

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

L.D.-B 2/1991

CIVIL PROCEDURE CODE (CHAPTER 101)

REGULATIONS made by the Minister of Justice under Section 840 of the Civil Procedure Code (Chapter 101) read with Section 214 of the said Code.

M. U. M. ALI SABRY,
Minister of Justice.

Colombo,
23rd June 2021.

Regulations

1. These regulations may be cited as the Civil Procedure (Costs) Regulations, 2021 and shall come into operation on 07th July, 2021.
2. All bills of costs, whether between a party and parties, or between a registered attorney and a client, shall be taxed by the Registrar of the court at the rates as set out in the Schedule hereto.
3. The Civil Procedure (Costs) Regulations, 1997 published in the *Gazette Extraordinary* No. 994/7 of September 24, 1997 are hereby rescinded.



SCHEDULE

[regulation 2]

PART I

RATES OF COSTS BETWEEN A PARTY AND PARTIES, OR A REGISTERED ATTORNEY AND A CLIENT, TAXED BY THE REGISTRAR OF THE DISTRICT COURT

No.	Column I	Column II			
	Categories of actions or pleadings	Class I	Class II	Class III	Class IV
		Where the cause of action, title to land or property, value of estate or subject matter of the action is less than 100,000/-	Where the cause of action, title to land or property, value of estate or subject matter of the action is Rs. 100,000/- or more than Rs. 100,000/- and less than Rs. 1,000,000/-	Where the cause of action, title to land or property, value of estate or subject matter of the action is Rs. 1,000,000/- or more than Rs. 1,000,000/- and less than Rs. 5,000,000/-	Where the cause of action, title to land or property, value of estate or subject matter of the action is Rs.5,000,000/- or more than Rs.5,000,000/-
I.	Conference with client and receiving instructions to sue, defend, intervene or interplead, to oppose the grant of letters of administration or letter of guardianship or probate or to take any other proceedings.	Rs. 2500/-	Rs. 5000/-	Rs. 15000/-	Rs. 25000/-
2.	Proxy to the each registered attorney for any of the purposes specified in item 1, and preparation of appointment of the legal representative	Rs. 2000/-	Rs. 2000/-	Rs. 2000/-	Rs. 2000/-
3.	Letter of demand	Rs. 2000/-	Rs. 2000/-	Rs. 2000/-	Rs. 2000/-
4.	Drafting plaint, answer, replication, plea or any other pleading, petition or application	Rs. 3000/-	Rs. 6000/-	Rs. 9000/-	Rs. 12000/-
5.	Filing the case	Rs. 1000/-	Rs. 2000/-	Rs. 3000/-	Rs. 4000/-
6.	Framing the issues and admissions, list of documents and list of witnesses	Rs. 1500/-	Rs. 3000/-	Rs. 4500/-	Rs. 6000/-

No.	Column I	Column II			
	Categories of actions or pleadings	Class I	Class II	Class III	Class IV
7.	Appearance of the registered attorney until final determination (per day) other than matters specified in item 11	Rs. 1000/-	Rs. 1500/-	Rs. 2000/-	Rs. 2500/-
8.	Drafting and filing summons and notices	Rs. 750/-	Rs. 750/-	Rs. 750/-	Rs. 750/-
9.	Drafting and filing the decree and writ of execution	Rs. 1000/-	Rs. 1000/-	Rs. 1000/-	Rs. 1000/-
10.	Summons or notices to witnesses (maximum three documents)	Rs. 500/-	Rs. 500/-	Rs. 500/-	Rs. 500/-
11.	Attending court by counsel to support or oppose all necessary or ordinary applications or motions including the appearance on trial dates (per day)	Rs. 3000/-	Rs. 4500/-	Rs. 6000/-	Rs. 7500/-
12.	Drafting - probate, letters of administration, interrogatories, cross interrogatories, commissions, special cases, injunctions, sequestrations, proclamation bonds, reference, citation, inventories, accounts, bills of costs, fair copy, per folio (per document and up to maximum three documents)	Rs. 1000/-	Rs. 1000/-	Rs. 1000/-	Rs. 1000/-
13.	Written submissions	Rs. 2500/-	Rs. 5000/-	Rs. 7500/-	Rs. 10,000/-
14.	Attending taxation and bill of cost	Rs. 1500/-	Rs. 1500/-	Rs. 1500/-	Rs. 1500/-

Note- (1) Following actual expenses to be allowed as costs, as the Registrar shall deem reasonable subject to review by the court: -

- (a) batta of official witnesses (including their travelling expenses);
- (b) maps, surveys, plans or models and proceedings; and
- (c) stamp duty.

(2) The party who moves for a date is not entitled for the cost for the said date, (for both registered Attorney and counsel)

PART II

RATES OF COSTS BETWEEN A PARTY AND PARTIES, OR BETWEEN A REGISTERED ATTORNEY AND A CLIENT, TAXED BY REGISTRAR OF HIGH COURT ESTABLISHED UNDER ARTICLE 154P OF THE CONSTITUTION READ WITH THE PROVISIONS OF THE HIGH COURT OF THE PROVINCES (SPECIAL PROVISIONS) ACT, No. 19 OF 1990 AND COURT OF APPEAL

No.	Column I	Column II			
	Categories of actions or pleadings	Class I	Class II	Class III	Class IV
		Where the cause of action, title to land or property, value of estate or subject matter of the action is less than 100,000/-	Where the cause of action, title to land or property, value of estate or subject matter of the action is Rs. 100,000 /- or more than Rs. 100,000/- and less than Rs. 1,000,000/-	Where the cause of action, title to land or property, value of estate or subject matter of the action is Rs. 1,000,000/- or more than Rs. 1,000,000/- and less than Rs. 5,000,000	Where the cause of action, title to land or property, value of estate or subject matter of the action is Rs.5,000,000/- or more than Rs.5,000,000
1.	Counsel's fee	Rs. 20,000/-	Rs. 40,000/-	Rs. 60,000/-	Rs. 75,000/-
2.	Registered Attorney's fee	Rs. 7,500/-	Rs. 15,000/-	Rs. 20,000/-	Rs. 25,000/-

Note- (1) Following actual expenses to be allowed as costs, as the Registrar shall deem reasonable subject to review by the court: -

- (a) brief fees ; and
- (b) stamp duty (if any)

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